

THE GAZETTE OF INDIA EXTRAORDINARY

PART II — SECTION 2

PUBLISHED BY AUTHORITY

No. 47] NEW DELHI, MONDAY, AUGUST 12, 2024/SHRAVANA 21, 1946 (SAKA)

MINISTRY OF ELECTRONICS AND INFORMATION TECHNOLOGY

NOTIFICATION — New Delhi, the 12th August, 2024

THE DIGITAL PERSONAL DATA PROTECTION ACT, 2024

(Act No. 22 of 2024)

An Act to provide for the processing of digital personal data in a manner that recognises both the right of individuals to protect their personal data and the need to process such personal data for lawful purposes and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Seventy-fifth Year of the Republic of India as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.

- (1) This Act may be called the Digital Personal Data Protection Act, 2024.
- (2) It extends to the whole of India and also applies to the processing of digital personal data outside the territory of India if such processing is in connection with any activity related to offering of goods or services to Data Principals within the territory of India.
- (3) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint; and different dates may be appointed for different provisions of this Act.

2. Definitions.

In this Act, unless the context otherwise requires,—

- (a) "**Board**" means the Data Protection Board of India established under sub-section (1) of section 18;
- (b) "**consent manager**" means a person registered with the Board, who acts as a single point of contact to enable a Data Principal to give, manage, review and withdraw her consent through an accessible, transparent and interoperable platform;

- (c) "**Data Fiduciary**" means any person who alone or in conjunction with other persons determines the purpose and means of processing of personal data;
- (d) "**Data Principal**" means the individual to whom the personal data relates and where such individual is— (i) a child, includes the parents or lawful guardian of such child; (ii) a person with disability, includes her lawful guardian, acting on her behalf;
- (e) "**Data Processor**" means any person who processes personal data on behalf of a Data Fiduciary;
- (f) "**personal data**" means any data about an individual who is identifiable by or in relation to such data;
- (g) "**personal data breach**" means any unauthorised processing of personal data or accidental disclosure, acquisition, sharing, use, alteration, destruction or loss of access to personal data, that compromises the confidentiality, integrity or availability of personal data;
- (h) "**processing**" means a wholly or partly automated operation or set of operations performed on digital personal data, and includes collection, recording, organisation, structuring, storage, adaptation, retrieval, use, alignment or combination, indexing, sharing, disclosure by transmission, dissemination or otherwise making available, restriction, erasure or destruction;
- (i) "**Significant Data Fiduciary**" means any Data Fiduciary or class of Data Fiduciaries as may be notified as such by the Central Government under section 10;
-

CHAPTER II

OBLIGATIONS OF DATA FIDUCIARY

4. Grounds for processing personal data.

- (1) A person may process the personal data of a Data Principal only in accordance with the provisions of this Act and for a lawful purpose—
- (a) for which the Data Principal has given her consent; or
 - (b) for certain legitimate uses as specified in section 7.
- (2) Every Data Fiduciary shall, at all times during the processing of personal data, be responsible for complying with the provisions of this Act in respect of any processing undertaken by it or on its behalf by a Data Processor.

5. Notice.

- (1) Every request for consent made to a Data Principal shall be accompanied or preceded by a notice given by the Data Fiduciary to the Data Principal, informing her—
- (a) the personal data and the purpose for which the same is proposed to be processed;
 - (b) the manner in which she may exercise her rights under sub-section (4) of section 6 and section 13; and
 - (c) the manner in which the Data Principal may make a complaint to the Board.

(2) The notice referred to in sub-section (1) shall be made available by the Data Fiduciary in English or any language specified in the Eighth Schedule to the Constitution, as may be chosen by the Data Principal.

6. Consent.

(1) Consent given by a Data Principal shall be free, specific, informed, unconditional and unambiguous with a clear affirmative action, and shall signify an agreement to the processing of her personal data for the specified purpose and be limited to such personal data as is necessary for such specified purpose.

(2) Any part of consent referred to in sub-section (1) that constitutes an infringement of the provisions of this Act or the rules made thereunder shall be invalid to the extent of such infringement.

(3) Every Data Fiduciary shall give the Data Principal the option to access the contents of consent in English or any language specified in the Eighth Schedule to the Constitution, as may be chosen by the Data Principal.

(4) A Data Principal may withdraw her consent at any time, with the ease of the same degree with which consent was given. The consequences of such withdrawal shall be borne by the Data Principal.

9. Processing of personal data of children.

(1) A Data Fiduciary shall, before processing any personal data of a child, obtain verifiable consent of the parent or the lawful guardian of such child.

(2) A Data Fiduciary shall not undertake such processing of personal data that is likely to cause any detrimental effect on the well-being of a child.

(3) A Data Fiduciary shall not undertake tracking or behavioural monitoring of children or targeted advertising directed at children.

Explanation.— For the purposes of this section, "child" means an individual who has not completed the age of eighteen years.

CHAPTER III

RIGHTS AND DUTIES OF DATA PRINCIPAL

11. Right to access information about personal data.

A Data Principal shall have the right to obtain from the Data Fiduciary—

(a) a summary of personal data being processed by the Data Fiduciary and the processing activities undertaken by that Data Fiduciary with respect to such personal data;

(b) the identities of all other Data Fiduciaries and Data Processors with whom the personal data has been shared by the Data Fiduciary, along with a description of the personal data so

shared; and

(c) any other information related to the personal data of such Data Principal and its processing, as may be prescribed.

12. Right to correction and erasure of personal data.

(1) A Data Principal shall have the right to—

- (a) correction of inaccurate or misleading personal data;
- (b) completion of incomplete personal data;
- (c) updating of personal data; and
- (d) erasure of personal data which is no longer necessary for the purpose for which it was collected and retained.

(2) The Data Fiduciary shall, upon receiving a request under sub-section (1), correct, complete, update or erase, as the case may be, the personal data of the Data Principal, where such request is justified.

13. Right to grievance redressal.

(1) A Data Principal shall have the right to have readily available means of redressal for her grievances.

(2) Before lodging a complaint with the Board, the Data Principal shall refer her grievance to the Data Fiduciary or the consent manager.

(3) Every Data Fiduciary shall establish an effective mechanism to redress the grievances of Data Principals, and every grievance shall be acknowledged and redressed expeditiously and within such period as may be prescribed.

CHAPTER IV

DATA PROTECTION BOARD OF INDIA

18. Establishment and composition of Board.

(1) The Central Government shall, by notification, establish a body to be known as the Data Protection Board of India to exercise the powers conferred upon and to perform the functions assigned to it under this Act.

(2) The Board shall be a body corporate having perpetual succession and a common seal, with power to contract and to acquire, hold and dispose of property, both movable and immovable, and to sue or be sued in its corporate name.

(3) The Board shall consist of such number of members, including the Chairperson, as may be prescribed by the Central Government.

33. Penalties.

Subject to the provisions of this Act, the Board may, after hearing the persons concerned, impose such financial penalty not exceeding the amounts set out in Schedule I, as it may deem fit:—

Sl. No.	Nature of Non-compliance / Breach	Financial Penalty (up to)
1	Failure to take reasonable security safeguards to prevent personal data breach (Section 8(5))	Rs. 250 crore
2	Failure to notify the Board and Data Principal in event of personal data breach (Section 8(6))	Rs. 200 crore
3	Non-fulfilment of additional obligations in relation to children (Section 9)	Rs. 200 crore
4	Non-fulfilment of additional obligations of Significant Data Fiduciaries (Section 10)	Rs. 150 crore
5	Breach of any other provision of this Act or the rules made thereunder	Rs. 50 crore

CHAPTER V

CROSS-BORDER TRANSFER OF PERSONAL DATA

16. Transfer of personal data outside India.

(1) Subject to such conditions as may be prescribed, a Data Fiduciary may transfer personal data of a Data Principal to a person outside India, except to such countries or territories to which the Central Government may, by notification, restrict the transfer of personal data.

(2) The Central Government shall notify the countries or territories to which personal data may be transferred, taking into consideration the adequacy of the level of protection afforded by the legal framework applicable in such countries or territories.

(3) Every organisation transferring personal data outside India shall take contractual, technical and organisational measures to ensure that the transferred data is processed in the same manner and to the same extent as would be mandated under this Act.

CHAPTER VI

EXEMPTIONS

17. Certain exemptions.

(1) Nothing contained in this Act shall apply to the processing of personal data—

- (a) by an instrumentality of the State for the purposes of—
- (i) sovereignty and integrity of India, security of the State, friendly relations with foreign States, maintenance of public order or preventing incitement to any cognisable offence relating to any of these;
 - (ii) investigation or prosecution of any offence or contravention of any law for the time being in force in India;
- (b) for research, archiving or statistical purposes, if the personal data is not used to take any decision specific to a Data Principal, subject to such standards as may be prescribed;
- (c) by the Central Government for the purposes of merger of two or more companies or for facilitating the acquisition of one company by another;

Note: The Central Government retains wide discretionary powers to exempt any instrumentality of the State from the provisions of this Act in the interest of sovereignty, security, public order, or friendly relations with foreign States, without judicial oversight. Critics argue this provision may enable mass surveillance without adequate checks.

By Order of the President,

S. KRISHNAN

Secretary to the Government of India,
Ministry of Electronics and Information Technology

[No. 7(71)/2023-MeitY]

*Printed by the Manager, Government of India Press, Minto Road, New Delhi — 110 002 and Published by the
Controller of Publications, Delhi — 110 054.*